

**IN THE LABOUR COURT OF SOUTH AFRICA
(HELD AT CAPE TOWN)**

CASE NUMBER 2026-083299

In the matter between:

WILBUR WILLIAM MATTHEE

Plaintiff

and

AFROCENTRIC HEALTH (PTY) LTD

First Defendant

MEDSCHEME HOLDINGS (PTY) LTD

Second Defendant

STATEMENT OF RESPONSE

Kindly take notice that the First and Second Defendant responds as follows to the Plaintiff's statement of claim:

AD PARA 1 TO 5 OF PART A THEREOF

1. The contents thereof are admitted, save to deny that the Defendants unlawfully deducted the Plaintiff's salary and unlawfully dismissed the Plaintiff.

2. The Plaintiff was on sick leave but had exhausted annual and sick leave. The principle of no work, no pay applied.
3. The Plaintiff resigned from the Second Defendant. The Defendants did not retaliate against the Plaintiff in any manner nor did the Second Defendant dismiss the Plaintiff.

AD PARA 6 OF PART A THEREOF

4. The Defendants are not aware of any further claim in the above honorable court with case number 2026-077546.

AD PARA 1 OF PART B THEREOF

5. The full and further particulars of the Plaintiff are unknown to the Defendants.
6. The Defendants deny rendering the Plaintiff destitute.

AD PARA 2 TO 3 OF PART B THEREOF

7. The contents thereof are admitted.

AD PARA 4 OF PART B THEREOF

8. The contents thereof are noted.

AD PARA 1 TO 2 OF PART C THEREOF

9. The contents thereof are admitted.

AD PARA 3 TO 6 OF PART C THEREOF

10. The contents thereof are denied. The Second Respondent offered a position to the Plaintiff with commensurate remuneration. The Plaintiff voluntarily accepted the position with full disclosure of the role title, rank and remuneration.
11. The Plaintiff provided services to Second Defendant, aligned to his role. These services were rendered voluntarily.
12. The Defendants deny committing any "bait-and-switch". The Defendants deny suppressing the Plaintiff's status in employment records or UIF declarations. The correct information as per the employment contract was declared to the relevant entities.

AD PARA 1 TO 4 OF PART D THEREOF

13. The contents thereof of denied.
14. The Plaintiff provided a letter stating that he suffered from PTSD and needed to attend further treatment for a period of two weeks.
15. The Second Defendant proposed that the Plaintiff work his hours in advance to allow him to take the time off to attend his treatment without impacting him financially.
16. Personal financial requests are not reasonable accommodation requests in relation to PTSD treatment. The Defendants are not registered financial institutions and do not grant loans.
17. The Defendants deny discriminating against the Plaintiff. The Plaintiff is put to the proof thereof.

AD PARA 1 TO 4 OF PART E THEREOF

18. The contents thereof are denied. There was no deduction made from the Plaintiff's salary in July 2025.
19. The Plaintiff had no leave due, he did not render services to the Second Defendant and the principle of no work, no pay applied.

AD PARA 1 TO 5 OF PART F THEREOF

20. Save to admit that a typographical error occurred, the contents thereof are denied, and the Plaintiff is put to the proof thereof.
21. In annexure K of the Plaintiffs statement of case Mrs Jones' message explained that no filtering was to be applied as the report came from HIU and it listed members who had not done their tests yet. This was a response to an operational matter, and it can in no objective manner be construed as harassment of any nature.
22. The Defendants admit that the Plaintiff lodged a formal complaint against Mrs Jones on 25 September 2025. The complaint was investigated and resolved with Mrs Jones apologising to the Plaintiff for her typographical error.
23. Annexure M of the Plaintiff's statement of case is confirmation of the Plaintiff's acceptance of the resolution of the matter. The matter was closed by 1 October 2025.

AD PART G TO I THEREOF

24. The contents thereof are denied, and the Plaintiff is put to the proof thereof.

25. The Plaintiff's proposal to review internal operational procedures did not constitute a protected disclosure. The matter was investigated, and a response was provided.
26. The Defendants deny retaliating against the Plaintiff in any manner or form for raising operational recommendations.
27. As per annexure N of the Plaintiff's statement of claim, page 84, The Plaintiff refused to contact a client after the investigation was complete, and he was reprimanded for insubordination.
28. The Defendants maintain that the Plaintiff's July 2025 salary aligned to the days worked in July 2025, this was in no manner linked to his request to review an internal operational procedure.

AD PARA 1 TO 6 OF PART J THEREOF

29. The contents thereof of denied. The Defendants undertook to investigate the Plaintiff's grievance and provided timelines for same. The Plaintiff was not satisfied with the timeline and opted to resign from the Second Defendant before allowing the investigation to conclude.
30. The Second Defendant repeatedly explained the Plaintiff's July 2025 salary to him. That is the true cause of his Labour Court action, but he failed to accept and understand that he is not entitled to payment for no work.

AD PARA 1 TO 3 OF PART K THEREOF

31. The contents thereof are denied. The Defendant's Employee Relations team filed an affidavit opposing the Plaintiff's condonation application.

32. The Plaintiff's subjective interpretation of the opposing affidavit does not override the objective legal intent of same.

AD PARA 1 TO 6 OF PART L THEREOF

33. Save to admit that the Plaintiff resigned from the Second Defendant, the contents thereof are denied for the reasons set out herein.

AD PARA 1 TO 4 OF PART M THEREOF

34. The contents thereof are denied. The Defendants are not responsible for the Plaintiffs inability to meet his financial obligations.

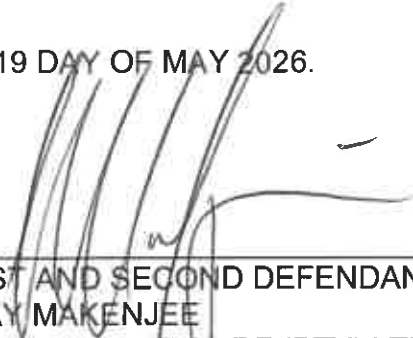
AD PARA 1 TO 2 OF PART O THEREOF

35. The contents thereof are denied. Acknowledgement of complaints does not corroborate the allegations contained therein.

AD PART P TO Q THEREOF

36. The Plaintiff was not dismissed from the Defendants; no unlawful deduction was made from the Plaintiff's July 2025 salary and the certificate of service issued to the Plaintiff is correct.
37. The Plaintiff has no viable cause of action against the Defendants. It is unsubstantiated, unfounded, frivolous and vexatious.
38. The action must accordingly be dismissed with costs granted in favour of the Defendants.

SIGNED AT ROODEPOORT ON THIS THE 19 DAY OF MAY 2026.



FIRST AND SECOND DEFENDANT
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